

1 ENGROSSED HOUSE  
2 BILL NO. 4274

By: Miller of the House

3 and

4 Pugh of the Senate  
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7 An Act relating to schools; amending 70 O.S. 2021,  
8 Section 8-103.1, as amended by Section 2, Chapter  
9 451, O.S.L. 2025 (70 O.S. Supp. 2025, Section 8-  
10 103.1), which relates to interdistrict transfers;  
11 requiring school districts to accept students of  
12 active duty military families on official orders;  
13 removing district residency requirements for students  
14 of active duty military families; requiring schools  
15 to treat students of military families as in-district  
16 residents for enrollment purposes; providing an  
17 effective date; and declaring an emergency.

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19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 70 O.S. 2021, Section 8-103.1, as  
21 amended by Section 2, Chapter 451, O.S.L. 2025 (70 O.S. Supp. 2025,  
22 Section 8-103.1), is amended to read as follows:

23 Section 8-103.1. A. A local school district board of education  
24 which receives a request for a transfer for a student who does not  
reside in the school district may refuse the transfer in accordance  
with the provisions of the open transfer policy adopted by the local  
school district board of education and subject to the provisions of  
subsections B and C of this section. Each local board of education

1 shall adopt an open transfer policy for the school district which  
2 specifies its criteria and standards for approval of transfers of  
3 students who do not reside in the district. The policy shall  
4 include, but shall not be limited to, provisions relating to the  
5 availability of programs, staff, or space as criteria for approval  
6 or denial of transfers. A school district may include in the policy  
7 as the basis for denial of a transfer, the reasons outlined in  
8 Section 24-101.3 of this title.

9 In considering requests for students to transfer into a school  
10 district, the board of education shall consider the requests on a  
11 first-come, first-serve basis. A school district shall not accept  
12 or deny a transfer based on ethnicity, national origin, gender,  
13 income level, disabling condition, proficiency in the English  
14 language, measure of achievement, aptitude, or athletic ability.

15 Notwithstanding the provisions of the Education Open Transfer  
16 Act, transfers of children with disabilities shall be granted as  
17 authorized in Section 13-103 of this title.

18 B. ~~A local school district board of education shall adopt a~~  
19 ~~policy for the school district regarding the transfer of students~~  
20 Students who are the dependent children of a member of the active  
21 uniformed military services of the United States on full-time active  
22 duty status and students who are the dependent children of a member  
23 of the military reserve on active duty orders shall be eligible for  
24 admission to the school district of their choice if he or she is a

1 student whose parent or legal guardian is transferred or is pending  
2 transfer to a military installation within the state while on active  
3 military duty pursuant to an official military order. ~~The policy~~  
4 ~~shall provide for the approval of the transfer if:~~

5 ~~1. At~~ Students shall be eligible if at least one parent of the  
6 student has a Department of Defense-issued identification card; and

7 ~~2. The student will be residing with a relative of the student~~  
8 ~~who lives in the receiving school district or who will be living in~~  
9 ~~the receiving school district within six (6) months of the filing of~~  
10 ~~the application for transfer.~~

11 C. 1. A student shall be considered in compliance with the  
12 residency provisions of Section 1-113 of this title if he or she is  
13 a student whose parent or legal guardian is transferred or is  
14 pending transfer to a military installation within the state while  
15 on active military duty pursuant to an official military order.

16 2. A school district shall accept applications by electronic  
17 means for enrollment including enrollment in a specific school or  
18 program within the school district and course registration for  
19 students described in paragraph 1 of this subsection.

20 3. Students described in subsection B of this section who  
21 currently reside outside of a district they are transferring to  
22 shall be treated by the receiving district as residing within the  
23 receiving district for purposes of enrollment.



1 arrival date provided on official documentation. A parent or legal  
2 guardian may use the following addresses as proof of residence:

- 3 a. a temporary on-base billeting facility,
- 4 b. a purchased or leased home or apartment, or
- 5 c. federal government or public-private venture off-base  
6 military housing.

7 D. For purposes of this section:

8 1. "Active military duty" means full-time military duty status  
9 in the active uniformed service of the United States including  
10 members of the National Guard and Military Reserve on active duty  
11 orders; and

12 2. "Military installation" means a base, camp, post, station,  
13 yard, center, homeport facility for any ship or other installation  
14 under the jurisdiction of the Department of Defense or the United  
15 States Coast Guard.

16 SECTION 2. This act shall become effective July 1, 2026.

17 SECTION 3. It being immediately necessary for the preservation  
18 of the public peace, health or safety, an emergency is hereby  
19 declared to exist, by reason whereof this act shall take effect and  
20 be in full force from and after its passage and approval.

1 Passed the House of Representatives the 9th day of March, 2026.

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3 \_\_\_\_\_  
4 Presiding Officer of the House  
5 of Representatives

6 Passed the Senate the \_\_\_\_ day of \_\_\_\_\_, 2026.

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9 Presiding Officer of the Senate